Ex Tempore

AGRILLIANCE (PRIVATE) LIMITED
versus
KLEIN KAROO SEED MARKETING ZIMBABWE (PRIVATE) LIMITED

HIGH COURT OF ZIMBABWE
DEME J
HARARE, 19 and 24 June 2026

Exception

R Mabwe, for the Plaintiff
S Hoko, for the Defendant

DEME J: The Plaintiff approached this court with a monetary claim against the Defendant. More particularly, the Plaintiff's claim is for:

> "a) Payment of the sum of USD$1,144,000.00, being damages;
> b) Interest thereon at the prescribed rate from date of summons to date of full payment;
> c) Costs of suit on the legal practitioner and client scale."

The Defendant entered appearance to defend on 11 February 2026. On 17 February 2026, the Defendant, through his legal practitioners, advised the Plaintiff of its intention to except to the summons and declaration. The letter was generated pursuant to the provisions of r 42(3). In response, the Plaintiff contended that the grounds for exception sought to be relied upon are unmerited. Reference is made to the Plaintiff's letter dated 5 March 2026 which is part of the record.

The Defendant subsequently filed exception together with heads of argument. The Defendant's exception is as follows:

> "1. The summons does not contain a true and concise statement of the basis of the Plaintiff's claim as required by Rule 12 (5)(d) of the High Court Rules, 2021. The Defendant is left uncertain as to which branch of law the claim stems from.
> 2. The summons is silent on the grounds of the cause of action and of the relief that the Plaintiff is seeking. The Plaintiff establishes two parallel claims in their summons and declaration, neither of which gives rise to an enforceable action at law.
> 3. The summons does not disclose the basis upon which the amount is being claimed, as is required in terms of the rules.
> WHEREFORE, the 1st Defendant prays that the exception be upheld and that the Plaintiff's claim be dismissed."

The Plaintiff, in response, filed heads of argument against the exception. The Plaintiff did not replicate to the exception as required in terms of the Rules.

On the day of hearing, I drew Adv Mabwe's attention to the provisions of r 42(9) which requires the filing of the replication in response to the exception. She conceded, a concession which, in my view, was well taken, that the filing of the replication is mandatory. She, in turn applied for condonation for the late filing of replication. She prayed for the postponement of the matter to enable the filing of the replication. Adv Mabwe referred the court to r 7 and s 176 of the Constitution. She further submitted that this court has got powers to regulate its own processes.

Adv Mabwe also argued that the non-filing of the replication was an oversight by legal practitioners as the repealed Rules did not require the filing of the replication. She insisted that the parties were ready to argue the matter had it not been for the issue raised by the court. Adv Mabwe drew the court's attention to the cases of *Muchini* v *Adams*[1] and *Friendship* v *Cargo Carriers Ltd*[2].

Adv Mabwe submitted that the Plaintiff's case does have prospects of success. She additionally maintained that the balance of convenience favours the granting of the application for condonation.

The application for condonation was opposed by the Defendant. Mr. *Hoko*, arguing on behalf of the Defendant, submitted that the Plaintiff cannot be condoned for a nullity. He contended that the exception must be deemed to be unopposed. He prayed for an order that the defence be struck out. Mr. *Hoko* further maintained that the filing of the replication is mandatory.

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[1] SC47/13.

[2] SC1/13.

He referred the court to the case of *Nyika and Anor* v *Minister of Home Affairs* where GARWE JCC, as he then was, postulated the following remarks:

> "[35] There is a further reason why the referral was doomed to fail before this Court. The matter was referred to this Court in circumstances where the applicants had not replicated to the special plea raised. Where a plea of prescription is raised, there should be a replication. Rule 42(9) of the High Court Rule, 2021 imposes an obligation on a legally represented litigant to file a replication where a special plea is raised. The rule provides as follows:
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> > "Where the other party is represented by a legal practitioner, he or she within ten days of receipt of the exception, special plea or application to strike out and the heads of argument accompanying it, file his or her replication and heads of argument and whereupon, the registrar shall give such party a set down date within a month from the date of filing."
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> [36] In *Brooker* v *Mudhanda* & *Anor; Pearce* v *Mudhanda* & *Anor* 2018 (1) ZLR 33 (S), at p 40, it was held that:
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> > "After being served with the special plea of prescription, the respondent should have replicated. The purpose of a replication is to inform the court and the defendant of the plaintiff's rebuttal to the special plea. The failure by the respondent to file a replication to the special plea means that there are no disputes for determination on the special plea. In the absence of such replication there would be no issue for determination by the court *a quo*."
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> [37] At the time the matter was referred to this Court, it was unclear from the pleadings whether the applicants were opposed to the plea. The plea was not rebutted and in the absence of such rebuttal, it follows that no dispute existed for the Court *a quo* to adjudicate. The raising of the constitutionality of s 70 in supplementary heads of arguments filed months later was clearly an afterthought which did not cure the failure to replicate to the special plea.
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> [38] At the time of referral, therefore, no clear dispute had crystallised on the pleadings. The absence of a replication meant that the special plea stood unchallenged and, as such, no constitutional issue had properly arisen before the court below. It is trite that a constitutional issue should not be determined in a factual or procedural vacuum. The court's jurisdiction to pronounce on constitutional validity is triggered only where a real, ernest and vital dispute arises, which was not the case here. See *I. Currie & J. De Waal*, The Bill of Rights Handbook, 6th Edition (2013) at p72."

What remains for determination is whether the application for condonation is merited.

Rule 42(9) provides for the filing of the replication in response to the exception. In particular, it provides as follows:

> "Where the other party is represented by a legal practitioner, he or she within ten days of receipt of the exception, special plea or application to strike out and the heads of argument accompanying it, file his or her replication and heads of argument and whereupon, the registrar shall give such party a set down date within a month from the date of filing."

Mr. *Hoko* argued that this court cannot condone a nullity. He relied on the case of *Jensen* v *Acavalos*[3] where KORSAH JA propounded the following remarks:

> "A notice of appeal must comply with the mandatory provisions of the Supreme Court Rules. If it does not, it is nullity and cannot be condoned or amended. What should be done is that an extension of time within which to comply with the relevant rule must be applied for. Whether such an application will succeed will depend on well-established principles, the extent of the delay, the reasonableness of the explanation proffered for the delay, and the prospects of success on appeal. The longer the delay, the more certain the court must be that there is a real chance of the appeal succeeding."

Adv Mabwe argued that the case of *Jensen* v *Acavalos supra* is distinguishable from the present case. She argued that the Supreme Court in the case of *Jensen* v *Acavalos supra* was dealing with the appeal unlike the present case where the court is invited to make a determination on the exception. On this basis, Adv Mabwe submitted that the court has discretion to condone an infraction of the Rules. I do agree with this submission. Mr. *Hoko*'s submission ignores the jurisprudence established by our courts with respect to the non-filing of the replication in cases of special plea and exception. In the case of *Nan Brooker* v *Mudhanda*, GOWORA JA, as she then was, held that where the replication has not been filed, this court can give directions as to how the parties may proceed. In particular, she remarked as follows:

> "In view of the failure to adhere to the correct procedure the judgments by the court *a quo* must be set aside. In my view the court should have in terms of the rules given directions to the parties on how the matter should have proceeded. There was nothing which precluded the court from directing the respondent to file a replication and from thence to hear the matter on the issues raised in the plea and the replication. In the circumstances it seems to me just that this is the procedure that the court should adopt in order for the special pleas to be properly dealt with, and an order for the remittal of the matter to the court *a quo* would best achieve this."

[3] 1993 (1) ZLR 216 (S.C.)

Replication to the exception represents the litigant's voice while the heads of argument represent the utterance of the legal practitioner. Heads of argument cannot be a substitute for the replication. The court needs to hear the voice of the litigant before hearing the voice of the legal practitioner. Reference is made to the case of *Nan Brooker* v *Mudhanda supra*.

Let me mention in passing that the procedure provided for in r 42(8) for the simultaneous filing of the exception and heads of argument appears to be irregular. In terms of r 42(8), the excipient is required to concurrently file the exception and heads of argument. At the time of filing of heads of argument, the excipient will be unaware of the issues which may be raised by the Respondent through his or her replication. The Respondent can only file replication after being served with the exception and heads of argument. Allowing the excipient to file heads of argument before the Respondent's replication is like allowing the filing of heads of argument before the closing of pleadings. The excipient's heads of argument will not be comprehensive enough at this stage. This irregularity needs to be corrected by an appropriate amendment.

Having established that the case of *Jensen* v *Acavalos supra* is inapplicable to the present circumstances, I must now proceed to determine whether the application for condonation is merited. In the case of *Maheya* v *Independent African Church*[4], the court held that:

> "In considering applications for condonation of non-compliance with its Rules, the Court has a discretion which it has to exercise judicially in the sense that it has to consider all the facts and apply established principles, bearing in mind that it has to do justice. Some of the relevant factors that may be considered and weighed one against the other are: the degree of non-compliance; the explanation therefore; the prospects of success on appeal; the importance of the case; the respondent's interests in the finality of the judgment; the convenience to the Court and the avoidance of unnecessary delays in the administration of justice."

Adv Mabwe maintained that Mr. *Hoko* did not vehemently oppose the application for condonation. Mr. *Hoko* did not address the court on whether the requirements of the application for condonation have been met. He only insisted that the court cannot condone a nullity. In my view, the application was unopposed to this extent.

[4] SC58/07.

In my view, the oral application lodged by the Plaintiff meets the essential requirements of the application for condonation. Adv Mabwe tendered an explanation which is reasonable in the circumstances. She submitted that the failure to file the replication was an oversight. The defence to the exception presents an arguable case. The balance of convenience favours the granting of the application. Granting the application will bring finality to litigation between the parties. Further, the Defendant will not be prejudiced by the filing of the replication. In terms of the rules, the replication can only be filed after Excipient's heads of argument. Generally, there will be no need for the filing of further heads of argument in response to the replication. To this end, the Defendant will not be prejudiced by the filing of the replication. In the premises, the application for condonation ought to be granted.

Adv Mabwe argued that the matter may be postponed to allow the filing of the replication. In my view, an order that the matter be removed from the roll is appropriate in the circumstances. This will give the Plaintiff time to regularise its pleadings. In my view, this matter was erroneously set down on the opposed roll as there was no replication. The filing of the replication will ensure that the matter will be properly enrolled on the opposed roll.

With respect to costs, as the point of law was raised by the court, it may be unfair to punish any party by an order of costs. An order that costs shall be in the cause is ideal. In the circumstances, it is ordered as follows:

A. Oral application for condonation made by the Plaintiff be and is hereby granted.
B. The Plaintiff be and is hereby directed to file the replication within ten days from the date of this judgment.
C. The matter be and is hereby removed from the roll.
D. The Registrar shall, in terms of the Rules, set down the matter for hearing before any Judge upon the filing of the replication by the Plaintiff.

E. Costs shall be in the cause.

DEME J ……..

Tarugarira Sande Attorneys, Plaintiff's Legal Practitioners
Kantor And Immerman, Defendants' Legal Practitioners